



Bill Number: S.B. 1066

Rogers Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Exempts researchers from liability for any fraudulent scientific research that was published and that was conducted at or funded by an accredited university.
2. Exempts accredited universities from liability for any such fraudulent scientific research.
3. Exempts drug manufacturers that are registered with the Arizona State Board of Pharmacy from liability for any fraudulent scientific research that was conducted by or funded by the drug manufacturer.
4. Makes conforming changes.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1066
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 6, Arizona Revised Statutes, is
3 amended by adding article 20, to read:

4 ARTICLE 20. FRAUDULENT SCIENTIFIC RESEARCH

5 12-791. Fraudulent scientific research; civil liability;
6 statute of limitations; exception; definitions

7 A. THE ATTORNEY GENERAL OR COUNTY ATTORNEY MAY BRING A CIVIL ACTION
8 AGAINST A RESEARCHER FOR KNOWINGLY OR RECKLESSLY PUBLISHING FRAUDULENT
9 SCIENTIFIC RESEARCH. THE ACTION SHALL BE PROVEN BY CLEAR AND CONVINCING
10 EVIDENCE.

11 B. A RESEARCHER IS NOT LIABLE IN AN ACTION COMMENCED PURSUANT TO
12 THIS SECTION FOR ANY OF THE FOLLOWING:

13 1. PREREGISTERING A SCIENTIFIC HYPOTHESIS, METHOD OR ANALYSIS
14 BEFORE RESEARCH IS CONDUCTED.

15 2. DISCOVERING RESULTS THAT WERE REPORTED TO AN INSTITUTION OR THE
16 PUBLIC WERE MISINTERPRETED OR THAT AN ERROR WAS MADE IN DATA ANALYSIS.

17 3. PROVIDING REASONABLE ACCESS TO THE STUDY AFTER THE CONCLUSION OR
18 PUBLICATION OF THE RESEARCH.

19 4. POSTING THE METHODOLOGY AND DATA ON AN OPEN ACCESS DATABASE OR
20 SITE.

21 C. IN AN ACTION BROUGHT UNDER THIS SECTION, THE COURT MAY ORDER:

22 1. TEMPORARY OR PERMANENT INJUNCTIVE RELIEF.

23 2. RESTITUTION TO THE INJURED PARTY, INCLUDING RESEARCH
24 INSTITUTIONS, UNIVERSITIES, FUNDING AGENCIES, CORESEARCHERS AND PERSONS
25 WHO SUFFERED REPUTATIONAL HARM, FINANCIAL HARM OR OTHER DAMAGES.

26 3. A CIVIL PENALTY OF NOT MORE THAN \$50,000.

27 4. ANY OTHER RELIEF THAT THE COURT DETERMINES TO BE APPROPRIATE.

28 D. AN ACTION FOR FRAUDULENT SCIENTIFIC RESEARCH SHALL BE COMMENCED
29 WITHIN FOUR YEARS AFTER THE RESEARCH IS PUBLISHED.

1 E. IF THE ATTORNEY GENERAL BRINGS AN ACTION UNDER THIS SECTION, THE
2 ATTORNEY GENERAL SHALL DEPOSIT, PURSUANT TO SECTIONS 35-146 AND 35-147,
3 CIVIL PENALTIES COLLECTED IN THE STATE GENERAL FUND. IF THE COUNTY
4 ATTORNEY BRINGS AN ACTION UNDER THIS SECTION, THE COUNTY ATTORNEY SHALL
5 DEPOSIT CIVIL PENALTIES COLLECTED IN THE COUNTY GENERAL FUND.

6 F. NOTWITHSTANDING SUBSECTION C OF THIS SECTION, A PARTY THAT
7 SUFFERS DAMAGES DUE TO A RESEARCHER WHO KNOWINGLY OR RECKLESSLY PUBLISHES
8 FRAUDULENT SCIENTIFIC RESEARCH MAY:

9 1. SUE IN THE SUPERIOR COURT.

10 2. RECOVER ACTUAL DAMAGES SUSTAINED, INCLUDING THE COST OF THE SUIT
11 AND REASONABLE ATTORNEY FEES.

12 [G. THIS SECTION DOES NOT APPLY TO:

13 1. A RESEARCHER WHO PUBLISHES SCIENTIFIC RESEARCH THAT WAS
14 CONDUCTED AT OR FUNDED BY A UNIVERSITY ACCREDITED BY AN ACCREDITING AGENCY
15 RECOGNIZED BY THE UNITED STATES DEPARTMENT OF EDUCATION, OR ITS SUCCESSOR
16 AGENCY, AND ANY SUCH UNIVERSITY IS NOT LIABLE UNDER THIS SECTION FOR ANY
17 FRAUDULENT SCIENTIFIC RESEARCH.

18 2. RESEARCH CONDUCTED BY OR FUNDED BY A DRUG MANUFACTURER THAT IS
19 REGISTERED WITH THE ARIZONA STATE BOARD OF PHARMACY, AND ANY SUCH DRUG
20 MANUFACTURER IS NOT LIABLE UNDER THIS SECTION FOR ANY FRAUDULENT
21 SCIENTIFIC RESEARCH.]

22 [G.] [H.] FOR THE PURPOSES OF THIS SECTION:

23 1. "FRAUDULENT SCIENTIFIC RESEARCH" MEANS RESEARCH THAT IS
24 KNOWINGLY OR RECKLESSLY PUBLISHED USING FALSE SCIENTIFIC INFORMATION OR
25 CONCLUSIONS.

26 2. "KNOWINGLY" INCLUDES ACTING IN DELIBERATE IGNORANCE OF THE
27 VERACITY OF THE INFORMATION AND DOES NOT REQUIRE PROOF OF A PERSON'S
28 SPECIFIC INTENT TO DEFRAUD.

29 3. "PUBLICATION" MEANS THE FORMAL PROCESS OF MAKING RESEARCH
30 AVAILABLE TO THE PUBLIC.

31 4. "RECKLESSLY" INCLUDES ACTING IN DISREGARD OF THE VERACITY OF THE
32 INFORMATION.

33 5. "RESEARCHER" MEANS A PERSON WHO CONDUCTS SCIENTIFIC RESEARCH.

34 Enroll and engross to conform

35 Amend title to conform

WENDY ROGERS

1066FloorROGERS.docx

03/10/2026

2:34 PM

C: JV

130BESJUK